

3. Cyber Crime Investigations Cells have also been set up by police departments of Mumbai, Kolkata and Tamil Nadu

Have these laws really helped us?

The conviction rate for cybercrimes in India has been less than 10 convictions in the last 12 years since the IT Act came into force (<http://dgit.in/UVeIT8>). Further, there have been zero convictions after IT (Amendment) Act, 2008 was implemented.

A serious drawback of current cybercrime legislation is that all offences, except cyber terrorism, are bailable. This allows ample leeway for guilty individuals to destroy all electronic evidence of their crimes as soon as they have attained bail. This “non-serious” approach to cyber crime has led to most people as well as enforcement agencies losing faith in the legislation itself, and contributed to the extremely low conviction rate. One cannot really blame the inspector at your neighbourhood for not being too keen on registering a cyber crime case, now can we?

Prominent cybercrime cases:

1. First conviction for a cybercrime in India

A call center employee at Noida had gained access to to an American citizen's credit card information and used the same to purchase a color television and a cordless phone through a Sony Entertainment website catering to NRIs. A month after the items were delivered to the individual, Sony Entertainment was informed by the credit card agency that the card owner had denied making the purchase. Luckily, digital photographs taken at the time of delivery were evidence enough for the CBI to convict the individual under several sections of the Indian Penal Code.

2. First conviction under the IT Act, 2000

Obscene and defamatory messages regarding a divorced woman were posted on a Yahoo message group, which resulted in phone calls to the woman in the belief that she was soliciting. Investigating based on a complaint made by the victim in February 2004, the police traced the source of the message to a Mumbai resident who was a family friend of the victim. He had resorted to harassing the victim as she had rejected his marriage offer. The accused's lawyers argued that the offending messages might have been sent by either the victim's ex-husband or by the victim herself in order to implicate the accused, and that the documentary evidence was not sustainable under the